

Karan Singh vs Sonia Talwar on 22 April, 2025

IN THE COURT OF SH. GAURAV SHARMA
JSCC-CUM-ASCJ-CUM-GUARDIAN JUDGE, EAST
KARKARDOOMA COURTS/DELHI

CNR No. DLET030005262020

Civ Suit No. 296/2020

Sh. Karan Singh
S/o Sh. Gurdeep Singh
R/o: 10/7, Gita Colony,
Gandhi Nagar, Delhi-110031

.....Plaintiff

Versus

1. Ms. Sonia Talwar
Alleged W/o Late Sh. Sher Singh
2. Ms. Vishali Talwar,
D/o Ms. Sonia Talwar
3. Ms. Rupali Talwar,
D/o Ms. Sonia Talwar

.....Defendants

Date of Institution	:	13.08.2020
Judgment reserved on	:	12.02.2025
Judgment pronounced on	:	22.04.2025

Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 1/31
JUDGMENT

22.04.2025

1. Suit Decreed.

2. It is seen that the defendants have not diligently pursued the case in as far as putting forth any credible evidence on record. Mere assertions cannot take place of proof. If that be so, plaintiff evidence adduced on record can be taken to have inspired confidence, entitling him to the relief sought.

3. Pithily put, the case of the plaintiff is that he is the exclusive and absolute owner of the entire property consisting of Ground, First and Terrace Floor, i.e. 10/7, Geeta Colony, Gandhi Nagar, Delhi-110031 ('suit property'). It is claimed that Late Sher Singh (Chacha) of the plaintiff was living alone in a portion of the suit property i.e. one room, one kitchen and WC at First Floor and one room, one kitchen and WC at Second floor of the suit property as a licensee. During his lifetime, it is contended, defendant no.1 Ms. Sonia Talwar also started residing with Sher Singh along with her two daughters Ms Vishali Talwar and Ms Ruplai Talwar, defendants no. 2 and 3, claiming to be wife and daughters respectively of Sher Singh. It is averred that Sher Singh never married defendant no. 1 and defendants no. 2 and 3 were not his daughters and in view of which, defendants were allowed to live as licensees only in the suit property along with Sher Singh. It is stated that Sher Singh died in March 2020 and his license to reside in the suit property therefore came to an end with his death. Likewise, it is also the plaintiff case that with the death of Sher Singh, the license of defendants also came to an end and they no longer had any right to reside in the suit property going forward. Defendants are in fact stated to have started indulging in unpleasant activities after Sher Singh's death, such as instigation, provocation to other family members to hamper peaceful living. In such a scenario, even though as per the plaintiff the license of the defendants had come to an end after the death of Sher Singh, out of caution, it was also explicitly terminated by virtue of legal notice dated 08.06.2020 and they were given 15 days' time vacate the suit property, lest their possession shall become unlawful. A reply dated 22.06.2020 to such legal notice was also filed by the defendants which as per the plaintiff was replete with false averments only and as such therefore, they are in illegal/unauthorised possession of the suit property since 01.07.2020 for which they are liable to pay use and occupation charges/mesne profits @ Rs. 15,000/- p.m. It is also pointed out that the defendants used to park one 'thela' ('rehri') in front of the house of the plaintiff to which they had no right. Despite being persuaded not to do the same, it is averred that the defendants did not listen. With such grievances, the present suit came to be filed seeking eviction of the defendants from the suit property.

4. After entering an appearance, the defendants filed their WS and all contentions of the plaintiff were denied. It was stated therein that in essence, the plaintiff documents did Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 3/31 not confer any title right from the beginning and there was no licensor licensee relationship between the parties. Defendant no. 1 also stated that Sher Singh was in possession of the portion they are living now from before and that after her marriage, she was put into possession of the suit property by him only along with her daughters. (from her first husband). It was also contended that Sher Singh had always apprised the defendant no. 1 that he was the owner of the suit property. Remaining all contentions of the plaintiff were also likewise denied.

5. In the replication filed, the arguments of the defendants were all sought to be negated.

6. Pleadings being as such, following issues came to framed by the Court on 18.12.2021:

I) Whether the plaintiff is entitled to the mandatory injunction as prayed by him in prayer clause (a)? OPP. II) Whether the plaintiff is entitled to the permanent injunction as prayed by him in prayer clause (b)? OPP. III) Whether the plaintiff is entitled to the permanent injunction, as prayed by him in prayer clause (c)? OPP IV) Whether plaintiff is entitled to a decree of mesne profit as prayed by him in prayer clause (d)? OPP V) Whether the suit is liable to be rejected under the Provisions of Order VII Rule 11 of CPC for want of legal ownership of the plaintiff in the suit property? OPD-1 to 3.

Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 4/31 VI) Whether the suit is not maintainable in present form for want of possession of the plaintiff in the suit property? OPD- 1 to 3.

VII) Whether the suit is not properly valued by the plaintiff? OPD-1 to 3.

VIII) Whether the suit is bad for want of sufficient Court Fees ? OPD-1 to 3.

IX) Relief.

7. In order to prove its case, the plaintiff examined himself as PW1 and he tendered his evidence by way of affidavit Ex. PW1/A. He also relied upon documents being:-

i) Site plan of property no. 10/7, situated at Geeta Colony, Gandhi Nagar, Delhi-110031 : Ex. PW1/1

ii) Photocopy of General Power of Attorney dated 25.03.2009 : Ex. PW1/2 (OSR)

iii) Photocopy of Will deed dated 25.03.2009 : Ex. PW1/3 (OSR)

iv) Photocopy of Gift Agreement dated 25.03.2009 : Ex. PW1/4 (OSR)

v) Photocopy of affidavit Sajjan Singh dated 25.03.2009 : Ex. PW1/5 (OSR)

vi) Photocopy of Family General Power of Attorney of Sh. Sajjan Singh dated 25.03.2009 : Ex. PW1/6 (OSR)

vii) Photocopy of Will Deed of Sh. Sajjan Singh dated 25.03.2009 : Ex. PW1/7 (OSR)
Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 5/31

viii) Photocopy of Gift Agreement of Sh. Sajjan Singh dated 25.03.2009 : Ex. PW1/8 (OSR)

ix) Photocopy of Affidavit of Sh.

Sajjan Singh dated 25.03.2009 : Ex. PW1/9 (OSR)

x) Photocopy of General Power of Attorney of Sh. Avtar Singh dated 08.08.2011 : Ex. PW1/10 (OSR)

xi) Photocopy of Will Deed dated 08.08.2011 of Sh. Avtar Singh : Ex. PW1/11 (OSR)

xii) Photocopy of Agreement to Sell dated 08.08.2011 of Sh. Avtar Singh : Ex. PW1/12 (OSR)

xiii) Photocopy of Affidavit of Sh. Avtar Singh dated 08.08.2011 : Ex. PW1/13 (OSR)

xiv) Photocopy of payment receipt dated 08.08.2011 regarding payment received by Avtar Singh : Ex. PW1/14 (OSR)

xv) Photocopy of possession letter given by Sh. Avtar Singh dated 08.08.2011 : Ex. PW1/15 (OSR)

xvi) Photocopy of General Power of Attorney by Gurdeep Singh dated 17.06.2010 : Ex. PW1/16 (OSR)

xvii) Photocopy of Will Deed dated 17.06.2010 by Sh. Gurdeep Singh : Ex. PW1/17 (OSR)

xviii) Photocopy of Agreement to gift dated 17.06.2010 between Gurdeep Singh and Karan Singh : Ex. PW1/18 (OSR)

xix) Photocopy of Affidavit of Sh. Gurdeep Singh dated 07.06.2010 : Ex. PW1/19 (OSR)

Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 6/31

xx) Photocopy of General Power of Attorney dated 27.08.2011 by Sh. Gurdeep Singh : Ex. PW1/20 (OSR)

xxi) Photocopy of Will Deed dated 25.08.2011 by Sh. Gurdeep Singh : Ex. PW1/21 (OSR)

xxii) Photocopy of Agreement of Sell dated 25.08.2011 between Gurdeep Singh and Karan Singh : Ex. PW1/22 (OSR)

xxiii) Photocopy of Affidavit of Gurdeep Singh dated 25.08.2011 : Ex. PW1/23 (OSR)

xxiv) Photocopy of payment receipt regarding payment received by Gurdeep Singh, dated 25.08.2011 : Ex. PW1/24 (OSR)

xxv) Photocopy of Possession letter by Gurdeep Singh dated 25.08.2011 : Ex. PW1/25 (OSR)

xxvi) Photocopy of Legal Demand Notice through Speed Post dated 08.06.2020 to Ms. Sonia Talwar, Ms. Vishali Talwar and Ms. xxvii) Receipts of speed post

xxviii) Reply of defendant dated 22.06.2020 to the legal notice

xxix) 2 Photographs of the suit property : Ex. PW1/29

8. PW1 was duly cross-examined where after PE was closed on 05.11.2022.

Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 7/31

9. Defendants examined themselves as DW1 and DW2 and tendered their affidavit in evidence as Ex. DW1/A & Ex. DW2/A. DW1 relied upon only one document - marriage certificate being Ex. DW1/1 (OSR). During cross examination of DW1, following documents were also put to the witness :

i) Photocopy of certified copy of Lease Deed dated 11.08.1967 in favour of Smt. Vishnu Devi executed by the President of India : Ex. DW1/P1

ii) Property documents transferred by Smt. Vishnu Devi to Sh. Sajjan Singh : Ex. DW1/P2 (Colly.)

10. After being cross-examined, DE was closed on 03.05.2023.

11. Final arguments were heard from both the sides.

12. Record perused. Submissions considered.

13. All issues framed, individually and collectively, are taken up for consideration together, emanating out of common facts and having intermixed connotations in intent and scope.

14. The issue confronted by the Court qua the facts of the case/relief sought comprises two distinct components that require separate examination: (a) the establishment of the plaintiff's ownership/possessory rights over the suit property, and (b) the establishment of the nature of the Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 8/31 defendants' occupation of the suit property - as a licensee of the plaintiff or otherwise.

Analysis of Ownership Proof :

15. Ideally, proof of title is established through registered deeds of conveyance or other official documents reflecting title. The plaintiff is seen to have relied upon a chain of documents to aver that he is the current owner of the suit property. Such chain of documents can be chronologically noted as follows :

a. Original lease dated 08.07.1967 executed by DDA in favour of Indu Devi (placed on record by putting to the defence witness during cross examination, not disputed) b. GPA and Agreement to Sell dated 17.05.1990 for consideration of Rs.60,000/- along with Affidavit, Receipt and a Will by Vishnu Devi in favour of her son Sajjan Singh (placed on record by putting to the defence witness during cross examination, not disputed) c. Family GPA and a Will dated 25.03.2009 - both registered, by Sajjan Singh in the name of his sons Gurdeep Singh and Avtar Singh qua area of 31 sq. yds each, along with an agreement of gift and affidavit d. GPA and a Will - both registered dated 08.08.2011 along with an Agreement to Sell dated 08.08.2011 for consideration amount of Rs. 3 Lakh together with payment receipt and possession letter - all executed by Avtar Singh on 08.08.2011 qua his portion of 31 sq. yds. in favour of his brother Gurdeep Singh Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 9/31 e. GPA and a Will - both registered dated 17.06.2010 along with an agreement to gift executed by Gurdeep Singh qua his own share of 31 sq. yds. in favour of Son Karan Singh

- the plaintiff - and qua the portion of 31 sq. yds. acquired through Avtar Singh as well, similar documents - GPA and a Will - both registered dated 08.07.2011 along with an Agreement to Sell dated 08.08.2011 for consideration of Rs. 3.5 Lakh,

payment receipt and possession letter in favour of Son Karan Singh - the plaintiff

16. It is contended by the defendant that in view of the documents of the kind as above and no proper conveyance documents being executed, plaintiff cannot be stated to have any right/title or interest in the suit property and as such therefore, he is not entitled to the relief sought. Further, it has also been contended that no assignment of the lease interest, as originally held by Vishnu Devi could be done without obtaining prior permission of DDA. Even with regards the Will documents executed at several stages, it is claimed that none of them have been proved by examining attesting witnesses or no probate also has been obtained so as to establish any claim based upon such documents. It is finally also averred that the husband of the defendant no. 1 Sher Singh, along with his other sisters was a co parcener in the property of their mother Vishnu Devi and therefore, the plaintiff and his predecessors cannot be said to be having any independent claim qua the suit property.

Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 10/31

17. None of the contentions of the defendant side convince the Court save as the one qua gift deed documents, which admittedly, can only confer any right if they are registered documents in relation to an immovable property, which in the present case, they are not. The first set of documents that the plaintiff has relied upon are the ones executed by Vishnu Devi in favour of Sajjan Singh in 1990, which also included a Will, which can indeed confer ownership on account of devolution after the death of the testator in terms of relevant provisions of Indian Succession Act, 1925. In view of the same, when Vishnu Devi did pass away subsequent to executing the documents that she did, which included the Will document, the ownership of the suit property did pass on to Sajjan Singh, clearly negating the very thrust of the defence of the defendant that the suit property never passed on to Sajjan Singh after the death of Vishnu Devi. Since such a devolution took place on account of death of Vishnu Devi, the plea taken by the defendant that no assignment of lease interest under the perpetual lease could take place without the leave of DDA is also liable to be rejected.

18. Great stress was laid on behalf of the defendants on the fact that even if the Will document as aforesaid were to be taken to have passed on the interest in the suit property, the plaintiff had failed to prove the Will in accordance with law in as much as no attesting witnesses to the same were examined. Such an argument also does not convince the Court. The requirement of a Will having to be proved by Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 11/31 summoning of an attesting witness is an argument that can be put forth in cases where there are inter se disputes between the legal heirs of a deceased testator and the validity of the Will is questioned in those circumstances. Such a requirement cannot have application to the facts of those cases where the disputes with regard to Will are not classical disputes between the legal heirs of the deceased testator and the Will is an instrument which really furthered an intent to transfer the rights in an immovable property by the testator to the beneficiary. In the present case in fact, there is absolutely no cross examination at all on behalf of the defendants as to the genuineness or otherwise of the Will and the only argument raised qua the same was that such a document, as part of the chain documents GPA, Agreement to Sell etc. could not confer title. Once there was no cross-examination on the inherent genuineness of the Will document, in the cases such as the present, which are different than the classical disputes inter se the legal heirs of a deceased testator, this Court is of the

opinion that the Will should be held to be a proved document in as much as the object of the Will in cases such as the present was really to transfer rights in an immovable property after the death of the testator. Further, it is also to be noted that the argument of a Will having to be strictly proved by calling the attesting witness as in probate cases are scenarios of a judgment in rem whereas in the present case the judgment on the basis of ownership rights devolving under a Will will not be a judgment in Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 12/31 rem but only a judgment inter se the parties. (Shri Ramesh Chand vs Suresh Chand & Anr. 188 (2012) DLT 538) Considering the same, looked at from whichever angle, Sajjan Singh can indeed be said to have become lawful owner of the suit property upon death of Vishnu Devi by devolution in view of the Will in question.

19. Apart from the above, it is seen that Vishnu Devi had also executed an Agreement to Sell for consideration of Rs. 60,000/- along with GPA, Affidavit and Receipt in favour of Sajjan Singh in 1990. With regards such documents, it is no longer res integra that unless there is a proper registered sale deed, title of an immovable property does not pass. The Hon'ble Supreme Court has however reiterated that irrespective, possessory rights do get created pursuant to Section 53A of the Transfer of Property Act, 1882 dealing with the doctrine of part performance in favour of a person holding a power of attorney given for consideration coupled with interest as per Section 202 of the Contract Act, 1872. It is further clear however that in order to obtain the limited benefit under Section 53A of Transfer of Property Act as well, the document relied upon must be a registered document. Any unregistered document cannot be looked into by the court and cannot be relied upon or taken into evidence in view of Section 17(1A) read with Section 49 of the Registration Act, 1908. Thus, benefit of Section 53A also can only be given if and only if the agreement to sell cum receipt satisfied the Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 13/31 provisions of Section 17 (1A) of the Registration Act. (Giriyappa and Anr. v. Kamalamma and Ors. 2024 INSC 1043) In the present case however, the agreement to sell documents were executed in favour of Sajjan Singh in the year 1990, that is, much before the amendment brought in the year 2001 to Section 53A of the Transfer of Property Act, 1882 which mandated the registration of the agreement to sell. If that be so, possessory rights in favour of Sajjan Singh do get established beyond doubt in view of the documents executed. Such documents note the factum of the transfer of possession in no uncertain terms and there is nothing contrary to the same shown by the defendants also. Therefore, it would at best mean that ownership rights as is normally known would even if may not rest with Sajjan Singh based upon the GPA, Agreement to Sell etc documents, however, possessory rights of the suit property cannot be disputed to have been transferred in his favour by such documents.

20. Anyways also, it is seen that both the defendants themselves, when examined as DW1 and DW2, in their respective cross examinations also conceded to the fact that Sajjan Singh had become the owner of the suit property after Vishnu Devi. Considering the same and in view of the aforesaid discussion, the ownership as well as possessory rights are clearly seen to have been accrued in favour of Sajjan Singh, primarily on account of the Will document executed by Vishnu Devi. All assertions to the contrary therefore by Ld. Counsel for the defendants that Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 14/31 the plaintiff could not have gotten any rights qua the suit property through Sajjan Singh at the threshold are repelled.

21.From Sajjan Singh going forward, registered GPA and Will documents were got executed in favour of two of his sons Gurdeep Singh and Avtar Singh, to the exclusion of Sher Singh, the third son/husband of defendant no.1. Admittedly, Sajjan Singh has also passed away. As such therefore, devolution of interest in terms of the Will documents, in a similar manner as above, stands completed in favour of Gurdeep Singh and Avtar Singh. Contentions with regards such Will documents having not been proved independently through attesting witness are also liable to be negated in a like manner. In view of the same, arguments of Ld. Counsel for the defendants that Sajjan Singh could not have passed on ownership to Gurdeep Singh and Avtar Singh through the documents executed are not acceptable.

22.Finally, from Gurdeep Singh to Karan Singh/plaintiff, it is seen that documents such as registered GPA and Will were executed and from Avatar Singh to Karan Singh/plaintiff, documents such as unregistered Agreement to Sell, GPA and Will were executed, first in favour of Gurdeep Singh and through him later, in favour of Karan Singh/plaintiff. All such documents, strictly speaking, do not convey proper title since no registered sale deeds were executed at any step. Even agreements to sell also, since executed after 2001 amendment to Section 53A of the Transfer of Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 15/31 Property Act, 1882, being unregistered, cannot be said to entail restricted possessory rights. In view of the same, title may not have passed in favour of the plaintiff per se. Having said so nevertheless, given the GPAs executed in favour of and by the people prior in interest, it can be said that they do grant to the plaintiff the right to act as attorney holder. Gurdeep Singh executed GPA in favour of Karan Singh/plaintiff straightaway and as such, plaintiff became his attorney holder. As for Avtar Singh, he executed GPA in favour of Gurdeep Singh first who in turn executed another one in favour of Karan Singh/plaintiff. The law is settled in this regard that though a general power of attorney holder cannot delegate his powers to another person but the same can be delegated when there is a specific clause permitting sub-delegation. In all the GPAs executed in the present case, from Gurdeep Singh to the plaintiff on one hand and from Avtar Singh to Gurdeep Singh initially and from him, in favour of the plaintiff later, there is an explicit clause providing for such delegation. Clause no. 6 in GPAs dated 08.08.2011, 17.06.2010 and 25.08.2011 - the first one executed by Avtar Singh in favour of Gurdeep Singh and the latter two by Gurdeep Singh in favour of plaintiff, reads as - "To appoint any vakil/advocate, further attorney or attorneys on my behalf". Further, Clause 8 of such GPAs also give the attorney holder the right to, inter alia, ".....to evict them by law..." And finally, such attorneys, also uniformly state towards the end that "All the previous Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 16/31 attorneys are alive and they have not revoked/changed/cancelled the GPA, so far, which are in force one upto date". Further, it is also to be remembered that the law permits parties to conduct legal proceedings, including deposing, through their duly authorized Power of Attorney holders and in the present case, with the title of Gurdeep Singh and Avatar Singh having been established, plaintiff, if not the owner, can be viewed as an attorney holder from that perceptive. Substance of his deposition as PW1 also largely pertains to facts within his personal knowledge due to his direct participation vis a vis the factual averments.

23.In suits of the present kind as one for injunction, the issue of ownership must be viewed in the context of the pleadings and the defence raised by the defendant and title is not required to be established strictly as in cases pertaining to say the ones for declaration of title. In their reply to the

legal notice of the plaintiff, WS and evidence, the defendants' core defence was not only that Sajjan Singh did not obtain valid title from Vishnu Devi and therefore he could not pass any better title down the line, but also that the husband of the defendant no.1, Late Sher Singh was in fact the real owner of the suit property. Defendant assertions with regards Sajjan Singh have already been found to be not sustainable as above and in fact, the defendants themselves conceded to his ownership of the suit property during their cross examination. By implication therefore, the defendants' defence narrative Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 17/31 admitted to the genesis of the chain through which the plaintiff claims, which did not include in it Sher Singh as an owner at any stage, from which only, Sher Singh's claim of ownership could have originated/his derivative right could flow. For the ownership of Sher Singh standalone, absolutely no document was produced by the defendants, either with their WS or even later and their claims remained only bald averments. That is to say, during the trial, the defendant led no evidence whatsoever to suggest that title vested with Sher Singh through Sajjan Singh or in the alternative, plaintiffs' foundational claim to ownership did not derive from Sajjan Singh. In the absence of any contrary evidence adduced by the defendants challenging the plaintiff's locus standi during the trial, and considering the implicit acknowledgment within its own defence narrative with regards the chain through which the plaintiff claims, reliance placed on the chain documents of the plaintiff (ownership documents from Vishnu Devi to Sajjan Singh to Gurdeep Singh and Avtar Singh and registered GPAs and Will documents from Gurdeep Singh and Avtar Singh to plaintiff (excluding the unregistered agreement to sell or agreement to gift)) to establish prima facie ownership for the limited purpose of maintaining the present action for possession against the defendants appears justifiable. Also, another aspect to be borne in mind is that besides Gurdeep Singh (plaintiff father), Avtar Singh and Sher Singh (husband of the defendant no.1), the other legal heirs of the deceased Sajjan Singh, whose Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 18/31 names were alluded to by the defendants in their written submissions, also never chose to add themselves as parties in the present suit in support of the defendants' claims, enuring to the benefit of the plaintiff. Had they done so, the level of scrutiny on the plaintiff version could have been stricter. But not to be. The standard is preponderance of probability, and therefore, the plaintiff's assertions, un- refuted by any contrary evidence at trial, met this threshold sufficiently to proceed with the claim.

Analysis of Licensor Licensee Relationship

24.The scope of the argument of a licensor licensee relationship existing between the parties hinges on arriving at a conclusion regarding the nature of the defendants' occupation of the suit property. The plaintiff has averred all along that defendant no. 1 was not the real wife of Sher Singh and likewise, defendant no. 2 and 3 were not his daughters either. It has been his stated position that despite them maintaining that she had not married Sher Singh, during his lifetime, defendant no.1 also started residing with him along with her two daughters. Having so started living in the suit property as such, the plaintiff claimed that they were allowed to live as licensees only, the marriage having never been admitted to. The plaintiff is also seen to have terminated the license of the defendants to continue with the possession of the suit property immediately after Sher Singh expired, since ostensibly, defendants had been allowed to reside therein only since the defendant no.1 had Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 19/31 claimed herself to be his wife (though never conceded to) In fact, the plaintiff has also contended that even Sher Singh

was residing in the suit property as a licensee from the time of Sajjan Singh and was successively allowed to reside as such, whilst the suit property exchanged hands from one person to another. The defendants have claimed on the other hand that Sher Singh, husband of defendant no. 1 was the owner of the suit property and after marriage, defendant no.1 and her children had started residing with Sher Singh in the suit property, because of which they cannot be regarded as licensees. In fact, as stated in the reply to the legal notice of the plaintiff, the defendants have claimed that the plaintiff family was their licensees and not the other way round.

25.The plaintiff documents have been found to be reliable, as discussed in the preceding paragraphs. And such documents categorically prove that interest in the suit property devolved from Sajjan Singh to his sons Gurdeep Singh and Avtar Singh, to the exclusion of Sher Singh. In fact, plaintiff and family are admittedly residing at the ground floor portion thereof. The plaintiff has maintained that Sher Singh was allowed to live as a licensee in the remaining portion of suit property and plaintiff documents do indicate towards that. The defendants, as noted above, have not been able to establish as to what right or interest did Sher Singh have in the suit property, if at all, apart from merely averring that he was the owner. Considering the same and given the fact that the plaintiff was allowed Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 20/31 to act as an attorney, it does indeed establish prima facie that Sher Singh was allowed to reside as a licensee only in the suit property successively over the years. This is more so since the defendants' claim that he was one of the coparceners/co-owners of the suit property has no legs to stand on.

26.Having said so, since Sher Singh has expired already and the plaintiff claim is now against the defendants - his alleged wife and children, the more germane question is with regards their nature of possession of the suit property now. The alleged marriage of the defendant no.1 took place in the year 2015. It is seen that the plaintiff is relying on documents in his favour pertaining to the suit property which belong to the years 2010-2011 (which have been found to be in order in the above noted paragraphs) Considering the same, the factual scenario which the plaintiff has outlined, that despite defendant no.1's marriage having never taken place with Sher Singh, she was allowed to reside in the suit property with her children does indeed show that their possession was permissive. If that be so, prima facie it does appear that the plaintiff did discharge his burden of proof with regards proving the licensor licensee relationship between the parties in so far as showing that defendants were allowed to reside in the suit property by the plaintiff as licensees, presumably because they had identified them as the wife and children of Sher Singh, who was already residing therein. Since the defendant no. 1 claimed that she came to reside at the suit Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 21/31 property after her marriage and in fact Sher Singh was the real owner, the facts which are disputed, the onus to prove both such assertions shifted upon the defendants. To support her claims, the defendant no. 1 as DW1 filed on record a copy of marriage certificate showing factum of her marriage with Sher Singh which took place at an Arya Samaj Mandir and nothing more. It is however settled that any marriage solemnised in an Arya Samaj Mandir, following the Vedic procedure only, or such other customs as may be applicable to Sikhs (since they also are covered under the definition of a 'Hindu') constitutes a valid marriage, as that shall fulfill the requirements of Section 7 of the Hindu Marriage Act, 1955. It has been held that the certificate issued by Arya Samaj does not carry the statutory force of prima facie proof of marriage, and though not irrelevant, it has to be necessarily proved/substantiated, say by the Purohit who

performed the marriage or some other person who may have been witness to the ceremony to establish that the marriage took place as per the Vedic procedure/applicable customs. (Maharaj Singh v. State of UP, 2025 SCC OnLine All 2133, decided on 08-04-2025) The defendant no.1 did not take any such steps and as such therefore, the factum of marriage to Sher Singh was never formally proved. Cross- examination alone of the plaintiff, while capable of weakening the opponent's case, often does not suffice to demolish it entirely, especially when positive counter-claims are made. Defendant no.1 was duty bound to show Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 22/31 that she was the wife of Sher Singh when it was specifically disputed. But the defendants completely failed to discharge the shifted onus. The record is unequivocal. The legal consequence of the defendants' failure is that the plaintiff's prima facie case, established earlier, stood largely unrebutted by positive evidence. The court, when deciding the matter finally, has been left with the plaintiff's evidence (however imperfect) on one side and a complete vacuum of evidence supporting the defendants' conflicting narrative on the other. Based on the preponderance of probability arising from the material on record therefore, the plaintiff case is liable to be considered favourably, meaning to say, having failed to discharge her onus of proof, the plaintiff contentions find favour with the Court that despite not accepting the marriage of defendant no.1 with Sher Singh, she was nevertheless allowed to reside in the suit property, but only as a licensee.

27. At the cost of repetition, it is to be borne in mind that this is a suit wherein the plaintiff claims that the defendants are his licensees. This is not a case for possession but mandatory injunction. The plaintiff is not required to prove his ownership strictly as he would have done in a declaratory or title suit. Though it is correct that defendant no.2 has challenged the assertion that she and her children are the licensee under the plaintiff, but the plaintiff cannot be compelled to prove his title in the absence of defendant no.1 showing the equities in her favour. Reliance is placed Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 23/31 on the judgment in the case of Suresh Kumar & Anr vs Saroj Atal cited at (2012) 189 DLT 285, wherein it was held that :

"7. In my opinion, the issue in the present case is not ownership of the suit property as is known in law of the respondent/plaintiff, but the issue as to entitlement to recover possession of the suit property, even assuming strict ownership may not rest with the respondent/plaintiff. Of course, the judgment in the case of Suraj Lamp (Supra) squarely applies against the respondent/plaintiff in the facts of the present case because the documents in question executed in favour of the respondent/plaintiff are dated 25.9.2001 and the amended provision of Section 53A of the Transfer of Property Act, 1882 came into force just one day before i.e. on 24.9.2001, however, it would at best mean that ownership rights as is normally known would not rest with the respondent/plaintiff, however, possessory rights of the suit property cannot be disputed to be that of the respondent/plaintiff. These possessory rights were created in the year 2001 itself by means of the documents executed in favour of the respondent/plaintiff. In a suit for possession a plaintiff has to show better title i.e. entitlement than that of the defendant and in the present case, besides the fact that respondent/plaintiff has shown a better entitlement to possession by virtue of the documents dated 25.9.2001 executed in her favour, the appellants/defendants themselves do not have any equities in their favour in as much

as qua both the flats purchased by them rights have been exercised. Thus, even if the respondent/plaintiff fails to prove the ownership rights stricto sensu to the extent of entitlement of possession, the appellants/defendants cannot defend the suit for possession once no title or interest in the suit property is claimed by them. The respondent/plaintiff, therefore, need not strictly prove, that a license deed ought to have been executed before the suit for possession could be filed by respondent/plaintiff. A license is merely a right to enter and exit a property and for which there is no deed which is required to be drawn up."

Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 24/31

28. In view of the above, this Court is of the opinion (based on preponderance of probability derived from the available evidence) that the defendants' occupation of the suit property is indeed as a licensee after the death of Sher Singh, the factum of a valid marriage between her and Sher Singh having never been proved. And once this license stood terminated, the legal consequences would indeed follow as a licensee holds no independent right, title, or interest in the suit property; their right to occupy being purely permissive and ceasing upon termination of the license. The defendants, having failed entirely to establish any alternative legal right to remain in possession

- be it alleged ownership of the suit property by Late Sher Singh or any other protected form - their continued occupation post-termination of the license became unlawful. In such circumstances, where an erstwhile licensee refuses to vacate upon termination of the license, a suit for mandatory injunction is a legally recognized and appropriate remedy for the licensor to recover possession. Therefore, this Court is of the view that the plaintiff is liable to be granted the relief sought as a direct, logical, and legally sound consequence.

29. Finally, with regards mesne profits/damages for wrongful use and occupation, the plaintiff claimed in the plaint as well as in the evidence affidavit that the defendants were required to pay such charges @ Rs. 15,000/- p.m being market rate.

Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 25/31

30. Mesne profits, as defined under Section 2(12) of the CPC, are essentially damages payable by a person in wrongful possession of property for such wrongful occupation. Once it is established that the defendants' license stood terminated and their continued possession became unlawful, the plaintiff's entitlement to mesne profits from the date the unlawful possession became wrongful as matter of law (Order XX Rule 12 CPC) The plaintiff issued legal notice dated 08.06.2020 terminating the license of the defendants and the same was denied by the defendants through their reply dated 22.06.2020. Since it has been held as above that the license of the defendants did stand terminated, the claim of the plaintiff for use and occupation charges/mesne profits from 01.07.2020 till handing over of possession is found to be proper by the Court.

31. Quantification is often a contentious aspect. The plaintiff has claimed Rs. 15,000/- p.m. but it did not quite adduce any specific evidence (like lease deeds of similar properties, valuer's report etc.) to

substantiate this rate. The defendants similarly, led no evidence to suggest a lower rate would be appropriate. In the absence of specific evidence from either party, courts often resort to some level of judicial notice or estimation based on the property's nature, size, location, and the time period involved, as recognised in the judgment of the Hon'ble Delhi High Court in *M C Aggarwal & Ors. V Sahara India & Ors.*, 183 (2011) DLT 105. The suit property comprises Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 26/31 of one room, one kitchen and WC at First Floor and one room, one kitchen and WC at Second floor in a place like Geeta Colony, Gandhi Nagar, Delhi, a residential-cum- commercial hub of Delhi. Total area of the property is somewhere around 62 sq. yds. In the cross examination of defendant no.1 when the question of the expected rate of rent was put to defendant no.1, she had replied that she was not aware if a property of the kind as the suit property is let out, it would fetch more than Rs. 15,000/- p.m. Considering the same and based on the description of the suit property, located in Delhi at a place like Geeta Colony, Gandhi Nagar, being used for residential purposes, this court is of the view that Rs. 10,000/- p.m. shall suffice to be awarded as mesne profits. Considering the location within Delhi and the general rental values, even for basic accommodation, an amount of Rs. 10,000/- p.m. does not appear, on the face of it, to be punitive, arbitrary, or wholly unreasonable. It reflects a modest assessment for unauthorised occupation in the National Capital Territory. While estimation always carries a degree of imprecision, the defendants provided no basis whatsoever to challenge this figure as excessive during the trial. Therefore, the quantification of Rs. 10,000/-, being an exercise of judicial discretion based on available information and general knowledge of local conditions, seems to be fair.

32.The award of interest on mesne profits is well-established, as interest is considered an integral part of the Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 27/31 compensation for being kept out of possession and deprived of the property's potential returns. The rate of 6% per annum is found to be reasonable and standard in such matters.

33.In view of the discussion as aforesaid, Issue wise findings can be summed up as follows :

I) Whether the plaintiff is entitled to the mandatory injunction as prayed by him in prayer clause (a)? OPP.

Finding : Decided in favour of the plaintiff and he is held entitled to a decree of mandatory injunction against the defendants who are directed to remove themselves from the suit property : (10/7, Geeta Colony, Gandhi Nagar, Delhi-110031 i.e. one room, one kitchen and WC at First Floor and one room, one kitchen and WC at Second floor) as shown in the site plan in red.

II) Whether the plaintiff is entitled to the permanent injunction as prayed by him in prayer clause (b)? OPP. Finding : Decided in favour of the plaintiff and he is held entitled to a decree of permanent injunction against the defendants who are restrained from creating any third party interest in the suit property or part with its possession to anyone else other than the plaintiff.

Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 28/31 III) Whether the plaintiff is entitled to the permanent injunction, as prayed by him in prayer clause (c)? OPP Finding : Since no evidence has been led on this aspect, the issue is decided against the plaintiff and he is held not

entitled to a decree of permanent injunction in this regard.

IV) Whether plaintiff is entitled to a decree of mesne profit as prayed by him in prayer clause (d)?
OPP Finding : The defendants are directed to pay mesne profits/use and occupation charges @ 10,000/- p.m. to the plaintiff alongwith an interest of 6% p.a. from 01.07.2020 till handing over of possession.

V) Whether the suit is liable to be rejected under the Provisions of Order VII Rule 11 of CPC for want of legal ownership of the plaintiff in the suit property? OPD-1 to 3. VI) Whether the suit is not maintainable in present form for want of possession of the plaintiff in the suit property? OPD- 1 to 3.

Finding : The issue stands infructuous as plaint was not rejected. Even otherwise, suit has been found to be maintainable in the present form and has been adjudicated on merits. As such therefore, the said issues are decided against the defendants and in favour of the plaintiff.

Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 29/31 VII) Whether the suit is not properly valued by the plaintiff? OPD-1 to 3.

VIII) Whether the suit is bad for want of sufficient Court Fees ? OPD-1 to 3.

Finding : Since the injunction suit has been found to be maintainable, the plaintiff having moved the Court within reasonable time after termination of license of the defendants, no fault can be found out with the valuation put to such relief. The plaintiff was therefore not required to value the suit as in case of a suit seeking possession and pay court fee on such valuation. Accordingly, the issues are decided against the defendants and in favour of the plaintiff.

RELIEF

34.All in all therefore, this Court holds that the plaintiff, despite certain weaknesses in his evidence (lack of title deeds, no written license), did manage to prove his case on balance with the defendants unable to discharge their onus vis a vis the specially pleaded facts. The plaintiff established a prima facie case regarding his ownership (sufficient for maintaining the suit against the defendants who claimed title independently but could produce no evidence at all) and presented a plausible narrative of a licensor-licensee relationship linked to allowing the defendant no. 1 and her children to reside in the suit property based upon a disputed marriage with Sher Singh.

Civ Suit No. 296/2020 Karan Singh Vs. Sonia Talwar Pg. No. 30/31 The evidentiary burden consequently shifted to the defendant to prove their defence, in which they completely failed.

35.Accordingly, Suit stands Decreed. Defendants are directed to remove themselves from the suit property : (10/7, Geeta Colony, Gandhi Nagar, Delhi-110031 i.e. one room, one kitchen and WC at First Floor and one room, one kitchen and WC at Second floor) as shown in the site plan in red and permanently enjoined from creating any third party interest in the suit property or part with its possession to anyone else other than the plaintiff. Alongwith the same, the defendants are directed

to pay mesne profits/use and occupation charges @ 10,000/- p.m. to the plaintiff alongwith an interest of 6% p.a. from 01.07.2020 till handing over of possession.

36.No costs.

Decree-sheet be prepared accordingly.

File be consigned to Record Room after necessary compliance.

Digitally signed by GAURAV Announced in the open Court GAURAV SHARMA SHARMA Date:

on 22.04.2025

2025.04.22
16:36:43
+0530

(Gaurav Sharma)
JSCC-cum-ASCJ-cum-Guardian Judge
East/KKD Courts/Delhi
22.04.2025